

Appendix B

**Liability Limits of a Parent or Guardian Having Custody and Control of a Minor
for the Torts of a Minor (Civ. Code, § 1714.1)**

Formula

Pursuant to Civil Code section 1714.1, the joint and several liability limit of a parent or guardian having custody and control of a minor under subdivisions (a) and (b) for each tort of the minor shall be computed and adjusted as follows:

$$\text{Adjusted limit} = \left[\frac{\text{Current CCPI} - \text{January 1, 1995, CCPI}}{\text{January 1, 1995, CCPI} + 1} \right] \times \text{January 1, 1995, limit}$$

Definition

“CCPI” means the California Consumer Price Index, as established by the California Department of Industrial Relations.

July 1, 2017~~9~~, calculation and adjustment

The joint and several liability of a parent or guardian having custody and control of a minor under Civil Code section 1714.1, subdivision (a) or (b), effective July 1, 2017~~9~~, shall not exceed ~~\$42,100~~ \$45,000 for each tort.

The calculation is as follows:

$$\text{\$42,129.21} \text{\$44,968.65} = \left[\frac{\text{\$255.303} \text{\$272.51} - 151.5}{151.5} + 1 \right] \times \$25,000$$

Under section 1714.1, subdivision (c), the adjusted limit is rounded to the nearest hundred dollars, so the dollar amount of the adjusted limit is rounded to ~~\$42,100~~ \$45,000.

Appendix B amended effective July 1, 2019; adopted effective January 1, 1997; previously amended effective January 1, 1999, January 1, 2001, January 1, 2003, January 1, 2005, January 1, 2007, February 18, 2009, January 1, 2011, July 1, 2013, and July 1, 2015, and July 1, 2017.